Section B: Administration

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Effective date: Jan. 1, 2027. Review cycle: once a year.

Regulatory basis: K.A.R. 28-51-101(e), (i); K.A.R. 28-51-103(b) to (g); K.A.R. 28-51-117(c), (d); K.S.A. 65-5117; K.S.A. 40-3104; K.S.A. 40-3107; 15 U.S.C. 1681b; KDHE Application Guide, Governing Body section (administrator and alternate duties, 200-mile residence).

B-1. Administrator and Alternate Administrator Job Description

Shared Requirements

These apply to both the administrator and the alternate administrator. The alternate meets every administrator requirement.[1] Either one gives a KDHE surveyor all client and administrative records within 30 minutes of a request.[2]

Qualifications

- At least 21 years old;[3]
- At least one year of experience as an employee of a home health agency or in a related health care service;[4]
- A bachelor's degree, an associate's degree, or a certificate from a KDHE-approved home health administrator course; the degree may be in any field;[5]
- Official transcripts on file for each degree; and[6]
- Lives within the service area, within 200 miles of the parent office in Manhattan.[7]

Other requirements, including whether CPR certification is required: to be decided by the agency.[8]

Before Starting Work

- A signed and dated copy of this job description;[9]
- Three reference checks, at least one from a past employer or supervisor, documented before employment;[10]
- A search of the federal OIG exclusion list and the National Sex Offender Public Website;[11][12]
- A KDADS background check eligibility determination; no one starts work until the check is complete and reviewed;[13][14]
- A self-reported health history;[15]
- A health assessment by a physician, nurse practitioner, clinical nurse specialist, physician assistant, or registered nurse certifying the person can perform the job functions in this job description; and[16]
- A current two-step tuberculosis skin test.[17]

The agency pays for required health assessments and TB tests.[18] A new health assessment is done every two years and after any significant health event.[19] A new background check is run every two years and after any allegation of abuse, neglect, or exploitation.[20]

Physical demands: able to perform the job functions in this job description, as confirmed by the health assessment. No lifting limit is set.[21]

Training, Evaluation, and Reporting

- Orientation before working with a client;[22]
- Abuse, neglect, and exploitation training at hire and every year;[23]
- TB education every year; and[24]
- A written performance evaluation within six months of hire and every year after that.[25]

Training time is paid.[26] Each person reports suspected abuse, neglect, or exploitation of a client immediately.[27]

Driving

These apply when the job requires driving for agency business.[28]

- A valid driver's license and a reliable vehicle;[29]
- Before driving for work: a copy of the license, a current auto insurance declarations page or certificate of insurance showing the named insured, the vehicle, the policy dates, and the liability limits, and written confirmation that the insurer knows the vehicle is used for work and the policy has no business-use exclusion;[30][31]
- New proof at each policy renewal; no driving for work if coverage lapses or falls below the minimum;[31]
- Minimum auto liability limits: to be decided by the agency with its business liability insurer;[32]
- A signed driver agreement and a driving record check at hire and once a year after that; and[33]
- No transporting clients.[34]

If a screening company supplies the driving record, the agency first gives a written notice in a document by itself and gets written permission.[35] Before acting on a record, the agency gives a copy of it and "A Summary of Your Rights Under the Fair Credit Reporting Act."[36] After acting, the agency gives the screening company's name, address, and phone number, a statement that the company did not make the decision, and notice of the right to dispute the record and to get a free copy within 60 days.[37]

Insurance

- Workers' compensation: required unless the agency's yearly payroll is $20,000 or less; insurer to be decided by the agency.[38] Report any work injury to the administrator the same day.[39]
- Hired and non-owned auto coverage: to be decided by the agency.[40]
- Bonding: to be decided by the agency.[41]

Employment Type and Pay

Alternate administrator (Hayley Hynek): W-2 at an hourly wage; not a management position.[42] Administrator and owner pay: to be decided by the agency.[43]

Administrator

Reports to: the governing body, Golden Rule Home Care & Concierge Services LLC.[44] The administrator:[45]

- organizes and directs the agency's daily operations;
- acts as liaison between the governing body and staff;
- hires qualified staff in line with job descriptions;
- gives every employee written personnel policies and job descriptions;
- keeps personnel records, administrative records, and all policies;
- provides orientation, in-service education, and continuing education;
- completes and submits the reports and records KDHE requires; and
- makes sure each client receives the bill of rights in writing.

The administrator may also serve as manager. When one person holds both jobs, the manager duties in C-3 also apply.[46] This job description may not list every task the administrator is asked to do.[47]

Alternate Administrator

The alternate is available any time the administrator is not and carries out all administrator duties in the administrator's absence.[48] The agency notifies KDHE in writing within five days after a change of alternate, with the alternate's name, address, and qualifications.[49]

When acting for the administrator, the alternate may submit a KDADS background check request at the administrator's request and sees criminal history results only while acting.[50]

Supervises when not acting: no one.[34]

Duties when not acting: backup caregiver when needed; answers the agency's forwarded calls and messages and returns calls; keeps up with client and family communication; investigates any grievance against the administrator.[34] While the owner also provides care, the alternate reviews that care.[51]

When working as a backup caregiver, the alternate shows competency in the Section I checklist before giving care without the manager present, and completes at least 8 hours of training a year.[52][53]

Employee signature: _____ **Date:** _____

Printed name: _____

B-2. Administrator Qualifications on File

Taylor Anderson, born 08/15/1993, lives in Manhattan, 0 miles from the parent office, and holds no professional license.[54] Her experience: caregiver, At Home Care, 2013 to 2015; associate practice manager, Manhattan Medical Group, 2015 to 2024; owner and operator, Golden Rule Home Care, 2023 to present.[55] Her education: clinical medical assistant, Eastern Virginia Career College, 2012; BS in business, Full Sail University, 2015; medical billing and coding, Ashworth College, 2024.[56] Official transcripts and proof of residence go on file.[57] **[VERIFY: obtain official Full Sail transcript.]**

Adoption

The governing body of Golden Rule Home Care & Concierge Services LLC adopts the policies in this section.[58] Taylor Anderson, as sole member and owner of the LLC, approves them and reviews them once a year or sooner when a rule changes.[59]

Signature: _____ **Date:** _____

Taylor Anderson, Owner, Golden Rule Home Care & Concierge Services LLC

Effective date: Jan. 1, 2027. Next review date: Jan. 1, 2028.

Client Review

Client redlines: mark any changes on this section, then sign and date below. A digital signature (for example DocuSign) is accepted in place of ink.

Client signature: _____

Printed name: _____

Date: _____

Client signature (digital)

Date signed

Notes

1. K.A.R. 28-51-103(c). Required: The alternate administrator meets all administrator requirements, is available whenever the administrator is not and handles all administrator duties in that absence. Source: Kansas Register, May 5, 2022. Binder: A-4.
2. K.A.R. 28-51-101(i). Required: The administrator or alternate administrator provides all client records and administrative records to the KDHE surveyor within 30 minutes of the surveyor's request. The secretary may extend the time. Source: Kansas Register, May 5, 2022. Binder: J.
3. K.A.R. 28-51-103(b)(2), (b)(4)(A). Required: The administrator is at least 21 and resides within the service area. The supportive care administrator requirements list no professional license. Source: Kansas Register, May 5, 2022. Binder: B-1.
4. K.A.R. 28-51-103(b)(4)(B). Required: At least one year of experience as an employee of a home health agency or in a related health care service. Source: Kansas Register, May 5, 2022. Binder: B-1.
5. K.A.R. 28-51-103(b)(4)(C). Required: A bachelor's degree, an associate's degree or a certificate from a KDHE-approved home health administrator course. The rule names no field of study. Source: Kansas Register, May 5, 2022. Binder: B-1.
6. K.A.R. 28-51-103(d)(3). Required: The personnel record must hold evidence of any required license or certification, and each degree must be supported by official transcripts. Source: Kansas Register, May 5, 2022. Binder: D-4.
7. K.A.R. 28-51-103(c), (b)(2); K.A.R. 28-51-100(vv). Required: The alternate meets all administrator requirements, which include residing within the service area of 200 miles from the parent office. Source: Kansas Register, May 5, 2022. Binder: A-4.

8. No state or federal rule applies; agency choice. K.A.R. 28-51-100 to 28-51-118 contain no CPR or BLS requirement. Binder: B-1; decision brief Q4 and Q5. Source: Kansas Register, May 5, 2022.
9. K.A.R. 28-51-103(d)(2). Required: A signed and dated job description that includes the qualifications. Source: Kansas Register, May 5, 2022. Binder: D-10.
10. K.A.R. 28-51-103(d)(5). Required: The personnel record must document reference checks completed before employment. The number of references and the follow-up steps are agency choice. Source: Kansas Register, May 5, 2022. Binder: D-3.
11. No state or federal rule applies; agency choice. Framing source: HHS OIG Exclusions search. Binder: D-5.
12. No state or federal rule applies; agency choice. Framing source: National Sex Offender Public Website. Binder: D-5.
13. K.S.A. 65-5117(e). Required: The operator must request an eligibility determination from KDADS. Using no other background check vendor is agency choice. Source: K.S.A. 65-5117. Binder: D-5.
14. K.A.R. 28-51-103(e). Allowed: Provisional hiring is optional, so declining to use it is agency choice. Source: Kansas Register, May 5, 2022. Binder: D-6.
15. K.A.R. 28-51-103(d)(6)(A). Required: A self-reported health history. Source: Kansas Register, May 5, 2022. Binder: D-8.
16. K.A.R. 28-51-103(d)(6)(B). Required: A health assessment by a physician, nurse practitioner, clinical nurse specialist, physician assistant or registered nurse certifying the employee can perform the job functions in the job description, done before working with clients. Source: Kansas Register, May 5, 2022. Binder: D-8.
17. K.A.R. 28-51-103(d)(6)(C). Required: A current two-step TB skin test following CDC testing guidelines for health care workers, taken before working with clients. Source: Kansas Register, May 5, 2022. Binder: D-8.
18. No state or federal rule applies; agency choice. Binder: D-8.
19. K.A.R. 28-51-103(d)(7). Required: A new health assessment at least every two years or after a significant health event. Source: Kansas Register, May 5, 2022. Binder: D-8.
20. K.S.A. 65-5117(i). Allowed: A new check is not required for an applicant checked within the past year. No rule requires a recheck every two years or after an allegation; that is agency choice. Source: K.S.A. 65-5117. Binder: D-5.
21. K.A.R. 28-51-103(d)(6)(B). Required: Before working with clients, a health assessment certifies the employee is physically able to perform the job functions in the job description. The rule sets no lifting amount; any limit is agency choice. Source: Kansas Register, Vol. 41, No. 18, May 5, 2022. Binder: B-1, D-8.
22. K.A.R. 28-51-103(b)(1)(F). Required: The administrator provides orientation for new staff. Finishing it before client contact is agency choice. Source: Kansas Register, May 5, 2022. Binder: I-1.
23. K.A.R. 28-51-103(g)(1). Required: In-service training on recognizing signs and symptoms of abuse, neglect or exploitation for employees and contracted personnel at hire or contract and every year after. Source: Kansas Register, May 5, 2022. Binder: F-2.
24. CDC, TB screening and testing of health care personnel. Allowed: CDC recommends annual TB education for all health care personnel. No Kansas rule found requires it; adopting it is agency choice. Source: CDC, TB testing for health care personnel. Binder: D-8.
25. K.A.R. 28-51-103(d)(4). Required: Performance evaluations within six months of employment and every year after that. Source: Kansas Register, May 5, 2022. Binder: D-7.
26. 29 CFR 785.27. Required: Training counts as paid work time unless it is outside regular hours, voluntary, not directly related to the job and involves no productive work. Training the rules require is directly job-related. Source: 29 CFR 785.27. Binder: I-1, I-4.
27. K.A.R. 28-51-103(g)(3); K.S.A. 39-1431(a)(1)(Q), (d). Required: The agency reports immediately when there is reasonable cause to believe a client is abused, neglected or exploited. The statute makes the chief administrative officer of a licensed home health agency a mandated reporter, and any other person may report. Requiring every worker to report is how the agency meets its duty. Source: Kansas Register, May 5, 2022; K.S.A. 39-1431. Binder: F-1.
28. No state or federal rule applies; agency choice. Framing source: K.S.A. 40-3104, Kansas auto insurance requirement. Binder: D-11.
29. K.S.A. 40-3104(a); K.S.A. 40-3107(e). Required: Every vehicle owner must carry auto liability insurance, with Kansas minimum limits of $25,000 per person, $50,000 per accident and $25,000 for property damage. Collecting proof is agency choice. Source: K.S.A. 40-3104; K.S.A. 40-3107. Binder: B-1, D-11.
30. K.S.A. 40-3104(a); K.S.A. 40-3107(e). Required: Every vehicle owner must carry auto liability insurance, with Kansas minimum limits of $25,000 per person, $50,000 per accident and $25,000 for property damage. Collecting proof is agency choice. Source: K.S.A. 40-3104; K.S.A. 40-3107. Binder: D-11.
31. No state or federal rule applies; agency choice. Framing source: K.S.A. 40-3107(e), Kansas minimum auto limits. Binder: D-11.
32. No state or federal rule applies; agency choice. Kansas minimum auto liability limits are $25,000 per person, $50,000 per accident and $25,000 for property damage; higher limits are agency choice. Framing source: K.S.A. 40-3107(e). Binder: D-11.

33. 15 U.S.C. 1681b(b)(2). Required: If a screening company supplies the driving record, the employer first gives a written disclosure in a document by itself and gets written permission. How often to check is agency choice. Source: 15 U.S.C. 1681b. Binder: B-1, D-11.

34. No state or federal rule applies; agency choice. Binder: B-1.

35. 15 U.S.C. 1681b(b)(2). Required: Before getting a consumer report for employment, the employer gives a clear written disclosure in a document that consists only of the disclosure, and gets written permission. Source: 15 U.S.C. 1681b. Binder: D-11.

36. 15 U.S.C. 1681b(b)(3). Required: Before any adverse action based on the report, the employer gives a copy of the report and a written description of the consumer's rights. Source: 15 U.S.C. 1681b. Binder: D-11.

37. 15 U.S.C. 1681m(a). Required: After adverse action, the employer gives the reporting agency's name, address and phone number, a statement that the agency did not make the decision, and notice of the right to a free copy within 60 days and to dispute the report. Source: 15 U.S.C. 1681m. Binder: D-11.

38. K.S.A. 44-505(a)(2), (b). Required: The workers compensation act applies unless the employer's total gross annual payroll was $20,000 or less last year and is expected to stay at or below $20,000 this year, not counting wages paid to family members. An exempt employer may elect coverage. Source: K.S.A. 44-505. Binder: M-16.

39. K.S.A. 44-520(a)(1). Allowed: A workers compensation claim requires notice of injury to the employer within 30 calendar days. Asking for a same-day report is agency choice. Source: K.S.A. 44-520. Binder: M-16.

40. No state or federal rule applies; agency choice. Binder: D-11; decision brief Q16.

41. No state or federal rule applies; agency choice. Binder: decision brief Q36.

42. 29 CFR 795.105. Required: Whether a worker is an employee or independent contractor under the FLSA turns on the economic reality of the work; the label does not decide it. K.A.R. 28-51-103(a)(2) requires the governing body to 'employ' a qualified administrator. Oct. 28 meeting lock: the alternate administrator is W-2 at an hourly wage, not a management position. How an owner-administrator is paid remains an attorney question. Source: 29 CFR 795.105. Binder: B-1.

43. No state or federal rule applies; agency choice. Binder: decision brief Q6.

44. K.A.R. 28-51-100(r); K.A.R. 28-51-103(a). Required: Each agency has a governing body, defined as the person or persons who make up its legal administrative structure. Source: Kansas Register, May 5, 2022. Binder: B-1.

45. K.A.R. 28-51-103(b)(1)(A) to (H). Required: The administrator organizes and directs the agency, acts as liaison between the governing body and staff, employs qualified staff, provides written personnel policies and job descriptions, maintains records and policies, provides orientation and in-service education, handles required KDHE reports, and ensures each client receives the bill of rights in writing. Source: Kansas Register, May 5, 2022. Binder: B-1.

46. K.A.R. 28-51-103(a)(2), (c). Allowed: No rule found bars one person from serving as administrator, manager and worker. The rule does require an alternate administrator who is available whenever the administrator is not. Source: Kansas Register, May 5, 2022. Binder: B-1.

47. No state or federal rule applies; agency choice. Framing source: K.A.R. 28-51-103(b)(1)(D), written personnel policies and job descriptions, Kansas Register. Binder: B-1.

48. K.A.R. 28-51-103(c). Required: The alternate administrator meets all administrator requirements, is available whenever the administrator is not and handles all administrator duties in that absence. Source: Kansas Register, May 5, 2022. Binder: B-1.

49. K.A.R. 28-51-101(e). Required: The agency notifies KDHE in writing within five days after a change of administrator or alternate administrator, with the new person's name, address and qualifications. Updating the appendix is agency choice. Source: Kansas Register, May 5, 2022. Binder: C, Appendix C-A.

50. K.A.R. 28-51-103(c). Required: The alternate administrator is available whenever the administrator is not and handles all administrator duties in that absence. Source: Kansas Register, May 5, 2022. Binder: D-5.

51. K.A.R. 28-51-117(e)(2). Required: Each supportive care worker gets on-site supervision at least every three months. No rule found says who supervises when the manager is also the worker; using the alternate administrator is agency choice. Source: Kansas Register, May 5, 2022. Binder: I-5.

52. K.A.R. 28-51-117(c). Required: Each worker must show competency before providing services without the manager present. Source: Kansas Register, May 5, 2022. Binder: D-9, I-3.

53. K.A.R. 28-51-117(d). Allowed: The rule sets no minimum number of hours. Eight hours a year is agency choice. Source: Kansas Register, May 5, 2022. Binder: I-4.

54. K.A.R. 28-51-103(b)(2), (b)(4)(A). Required: The administrator is at least 21 and resides within the service area. The supportive care administrator requirements list no professional license. Source: Kansas Register, May 5, 2022.

55. K.A.R. 28-51-103(b)(4)(B). Required: At least one year of experience as an employee of a home health agency or in a related health care service. Source: Kansas Register, May 5, 2022.

56. K.A.R. 28-51-103(b)(4)(C). Required: A bachelor's degree, an associate's degree or a certificate from a KDHE-approved home health administrator course. Source: Kansas Register, May 5, 2022.

57. K.A.R. 28-51-103(d)(3). Required: Each degree in a personnel record is supported by official transcripts. Keeping proof of residence is agency choice that documents K.A.R. 28-51-103(b)(2). Source: Kansas Register, May 5, 2022.

58. K.A.R. 28-51-103(a)(3). Required: The governing body adopts, revises and approves the agency's policies and procedures as needed. Source: Kansas Register, May 5, 2022.

59. K.A.R. 28-51-103(a)(3). Allowed: The governing body revises policies as needed. A yearly review is agency choice. Source: Kansas Register, May 5, 2022.